

 Internal Case Management System Worksheet - Case Closing					Top Allegation USE OF FORCE - LEVEL 2	Group G54-GROUP 54 - FORCE Date of This Report 10/01/2020	
Date Reported 06/30/2020	Date Assigned 06/30/2020	IAB Log No. 2020- 16167	Case No. (G54) FI- 2020-564	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 4683136

Topic/Subject (Case Closing) CASE CLOSING (UNSUBSTANTIATED/MNOR PROCEDURAL VIOLATION)	Activity Date 10/01/2020	Activity Time 15:50
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case #:
FI-2020-0564

Log #:
2020-16167

Subject Officer #1:
PO Peter Dinsmore, Tax #957549, temporarily 40th Precinct; however, his permanent command is the Legal Bureau. It should be noted that at the time of this incident, he was assigned to the Legal Bureau.
Date of Appointment: 01/07/2015
Probation (at the time of the incident): No
Current Duty Status: Full Duty (Active)

Subject Officer #2:
Unidentified Officer
Date of Appointment: N/A
Probation (at the time of the incident): N/A
Current Duty Status: N/A

Date Case Received:
July 1, 2020

Date of Occurrence:
May 30, 2020

Administrative Statute of Limitations Expires:
November 30, 2021

Classification:
C2

Investigator:
Sgt. Yuriy Chuyko, Tax #940006

Team Leader:
Lt. Christopher Zizza, Tax #937793

Overall Case Disposition:
Unsubstantiated / Minor Procedural Violation

Details:
Log #2020-16167
On 06/30/20, the IAB Command Center received an email from the NYS Attorney General's Office in regards to an incident that occurred on or about 05/31/20, at Times Square in Manhattan, which involved the arrest of a male (later identified as [REDACTED]) that stood on top of a Police vehicle. A video of the incident captured [REDACTED] standing on the hood of a stationary marked RMP #5351 and a NYPD officer (later identified as PO Peter Dinsmore) push him off onto the roadway. PO Dinsmore, along with other unidentified officers then place [REDACTED] under arrest for [REDACTED]. During the struggle, it appears that an unidentified officer swung and jabbed his baton at [REDACTED]. It should be noted that the video doesn't clearly show if the baton made contact with [REDACTED]. Callout #2020-16167 was handled by Group #54

Identification and Interview of Reporter:

The NYS Attorney General's Office is listed as a reporter in this case due to the fact that on 06/30/20, that office emailed the IAB Command Center to report this incident. The NYS Attorney General's Office email to the IAB Command Center generated IAB Log #2020-16167. No one from the NYS Attorney General's Office was interviewed in regards to this investigation.

Identification and Interview of Arrested Person:

██████████ DOB: ██████████, known to the Department under NYSID # ██████████, is a male Black, who resides at ██████████. He was arrested (██████████) on 05/30/20 at 1645 hours, by PO Peter Dinsmore, 40th Precinct for ██████████. On 07/22/20, investigators from Group #54 interviewed ██████████ via landline, in regards to this investigation. Upon interview, ██████████ stated that while marching for Black Lives Matter in the vicinity of Times Square, he was attacked by a Police Officer (later identified as PO Dinsmore), who grabbed his ankle. ██████████ admitted that during the protest, he stood on top of a stationary Police vehicle in order to speak to his "black people." ██████████ explained stated that he wasn't jumping on the vehicle and that he only stood on the vehicle to address the crowd. ██████████ further stated that as he was attempting to get off the vehicle, PO Dinsmore grabbed his ankle. Once he was off the vehicle, he was approached by PO Dinsmore and several other officers. ██████████ was subsequently placed under arrest. During the struggle, ██████████ stated that an unidentified officer struck him 2 times with a baton (knee and thigh). It should be noted that ██████████ didn't receive or request and medical attention. No other information of investigative value was obtained.

Identification and Interview of Witness Officers:

PO Colleen Willis, 23rd Precinct was listed as a witness officer in this case due to the fact that RMP #5351, which was observed in the video provided by the Attorney General's office, was assigned to her and her partner (PO Hoza) on the date of this incident. Her interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

PO Paul Hoza, 23rd Precinct was listed as a witness officer in this case due to the fact that RMP #5351, which was observed in the video provided by the Attorney General's office, was assigned to him and his partner (PO Willis) on the date of this incident. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

Lt. Richard Mantellino, Legal Bureau was listed as a witness officer in this case due to the fact that he prepared TINC #2020-014-██████████ in regards to this investigation. Lt. Mantellino wasn't interviewed in regards to this investigation.

Identification and Interview of Subject Officers:

PO Peter Dinsmore, temporarily 40th Precinct was identified as a subject officer in this investigation due to the fact that he used force to take ██████████ down off the hood of marked RMP #5351 and place him under arrest. It should be noted that PO Dinsmore's permanent command is the Legal Bureau. It should be noted that at the time of this incident, he was assigned to the Legal Bureau. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

An unidentified officer was listed as a subject officer in this investigation due to the fact that he was observed on video swinging his baton in the direction of ██████████ leg. This officer wasn't identified; therefore, no interview took place.

Canvass:

During this investigation, investigators from Group #54 responded to the vicinity of 7th Avenue and West 41st Street, NY, NY to conduct a canvass for video, which resulted in negative results. No video footage was located.

> A review of the Instagram video, which captured this incident, disclosed the following information: ██████████ is observed standing on the hood of marked RMP #5351. PO Dinsmore approached ██████████ grabbed him by the ankle, and performed a forcible takedown in an attempt to apprehend ██████████. No further force is observed being utilized by PO Dinsmore. While attempting to handcuff and arrest ██████████, an unidentified officer attempted to strike ██████████ in the leg area with a baton as ██████████ attempts to flee. Based on the video, it's inconclusive if the baton made contact with ██████████ leg. The sound of the baton striking the ground can be heard. At no time during the incident was ██████████ punched or kicked.

It should be noted that investigators from Group #54 requested that Group #7 enhance the above video in order to obtain shield numbers and to determine if the baton made contact with ██████████. After enhancing the video, Group #7 was unable to obtain any shield numbers or determine if the baton made contact with ██████████. No other information of investigative value was obtained.

Review of Department Records:

A review of Arrest Report # ██████████ / Complaint Report #2020-014-██████████ disclosed that ██████████ on 05/30/20 at 1645 hours, by PO Peter Dinsmore, 40th Precinct for ██████████. Details are as

██████████ No other information of investigative value was obtained.

A review of Department Body Worn Cameras related to this investigation disclosed that there was no footage that captured this incident. It should be noted that a BWC inquiry on all MOS assigned to the detail roster for the date of 05/30/20, came back with negative results for the incident under investigation. No other information of investigative value was obtained.

There were a total of 2 TRI Reports that were prepared in regards to this incident. Details of these reports are as follows:

> Lt. Richard Mantellino, Legal Bureau (TINC #2020-014-██████████): This report documented that PO Dinsmore observed ██████████ engaging in tumultuous and violent conduct, along with several hundred other unknown perps during the NYC protests/riots. ██████████ attempted to destroy a marked NYPD vehicle by jumping up and down repeatedly on the hood causing dents and scratches. PO Dinsmore physically removed ██████████ from the hood by pulling him down to the ground, at which time ██████████ did resist arrest by flailing his arms, refusing to be handcuffed, and failing to comply with PO Dinsmore's verbal commands. ██████████ was subsequently handcuffed and placed under arrest. He was charged with ██████████. No canvass for video or interviews were conducted at the scene due to the on-going danger and emergency of the incident. No other information of investigative value was obtained.

> PO Peter Dinsmore (TACT #2020-014-██████████): This report documented that PO Dinsmore performed a forcible takedown of ██████████ to overcome resistance and aggression. As a result of this incident, ██████████ was placed under arrest and charged with ██████████. No other information of investigative value was obtained.

A review of the ICAD database disclosed 2 jobs (ICAD #'s ██████████) related to this incident. Details are as follows:

> ICAD #'s ██████████: Both jobs were generated on 05/30/20 at approximately 1849 hours, for a 10-13 at the intersection of West 41st Street and 7 Avenue. The job indicated that MOS were being surrounded at the location and that officers were calling for additional units to respond. As a result of this job, at approximately 1852 hours, 2 persons were arrested. No other information of investigative value was obtained.

It should be noted that a review of the radio transmissions for the above listed jobs disclosed no additional information of investigative value.

An AVL inquiry on RMP #5351-16 disclosed that at the time of this incident, the vehicle was turned off and parked at the incident location (corner of Broadway and West 41 Street). No other information of investigative value was obtained.

A review of the detail rosters from SRG Operations related to this incident assisted investigators from Group #54 with identifying officers that were assigned to the protests. No other information of investigative value was obtained.

Computer and Related Background Checks:

An ICMS, IAPRO, CCRB and DAS-Lite background check was conducted on ██████████ which disclosed the following: ICMS disclosed no other incidents on file.

IAPRO disclosed no history on file.

CCRB disclosed no history on file.

DAS-Lite inquiry on ██████████ disclosed no prior arrests on file.

A PEPR, ICMS, IAPRO, CCRB, and CPI, background check was conducted on PO Peter Dinsmore, which disclosed the following:

PEPR disclosed that PO Dinsmore was appointed to the Department on 01/07/2015. He is temporarily assigned to the 40th Precinct; however, his permanent command is the Legal Bureau. It should be noted that at the time of this incident, he was assigned to the Legal Bureau. PO Dinsmore has never been designated as chronic sick and isn't currently on any type of disciplinary monitoring.

ICMS disclosed 3 other incidents on file with no similar allegations.

IAPRO disclosed no history on file.

CCRB disclosed no history on file.

CPI disclosed 2 incidents on file with no similar allegations.

Conferrals Conducted:

Lt. Ng, IAB Intel, RFI #2020-813: Requested in order to obtain character assessment for PO Dinsmore and obtain any information regarding the allegation. The following information was obtained:

> The agent reported that PO Dinsmore is part of the summer all-out crew that recently came to the command. PO Dinsmore came from 1 Police Plaza. He is currently assigned to patrol on the 3rd Platoon at the 40th Precinct.

> The agent didn't hear any negative rumors and didn't have any information in regards to the incident involving [REDACTED]

PO Addo, TARU (Plant #40): Disclosed that TARU didn't have any video, which captured this incident.

ADA Borczyk, Public Corruption Unit: Waived criminality.

Ms. Beverly Walker, NYC Comptroller's Office: Disclosed that there was no Notice of Claim filed against The City of New York and New York City Police Department on behalf of [REDACTED]

Sgt. Dario, IAB Assessments: Disclosed that on 09/23/20, IAB Log #2020-22070 was created and referred to CCRB in order to address the FADO allegations in regards to this incident. It should be noted that CCRB hasn't generated a CCRB case or assigned a CCRB investigator; therefore, no interviews or PG interviews have been conducted. No other information of investigative value has been obtained.

Other Information of Investigative Value:

A WebCrims inquiry on [REDACTED] disclosed that he [REDACTED]

Patrol Guide 206-13 Hearings:

On 08/11/20, Lt. Zizza and Sgt. Spennato interviewed PO Colleen Willis as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. Upon interview, PO Willis stated that she was assigned to RMP #5351 with her partner, PO Paul Hoza. She initially reported for a motorcycle detail, but was reassigned to a mobilization detail on 05/30/20. PO Willis stated that the mobilization detail was part of the protest detail and that she was mobilized throughout the city. PO Willis stated that at one point during the mobilization she and PO Hoza were posted near West 41st and Broadway in Manhattan. PO Willis stated that at West 41st and Broadway there were a lot of protests. The protests weren't peaceful, it was very loud and at times violent with bottles being thrown at officers. PO Willis stated that she was approximately half a block away when she observed someone (later identified as [REDACTED]) standing on her assigned RMP #5351. She described [REDACTED] as stomping or dancing on the RMP. She began making her way toward her RMP when she observed another officer (PO Dinsmore) apprehend and arrest [REDACTED]. PO Willis stated that she never saw anyone strike this individual with a baton. PO Willis stated that she observed PO Dinsmore take down [REDACTED] by the legs from the RMP, but didn't see anything past that because she was walking toward the RMP from the rear. PO Willis stated that she had no interaction with [REDACTED] at the incident location. She further stated that as a result of [REDACTED] actions, he was arrested. It should be noted that [REDACTED] was arrested by PO Dinsmore and charge with [REDACTED]. After [REDACTED] was arrested, PO Willis stated that he returned to her post. At the conclusion of the interview, PO Willis was given an opportunity to view the Instagram video, which captured this incident. After reviewing the video, she was unable to identify the officer that was swinging his baton. No other information of investigative value was obtained. A review of PO Willis' activity log entries related to his incident disclosed that they were proper and within Department guidelines

On 08/11/20, Lt. Zizza and Sgt. Spennato interviewed PO Paul Hoza as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. Upon interview, PO Hoza stated that on 05/30/20, he was originally assigned to a motorcycle detail, but was reassigned to the protests. He further stated that he was partnered with PO Colleen Willis on the mentioned date. PO Hoza stated that he was present at West 41st and Broadway and at this location there were a lot of disorderly people, who were throwing bottles and other items at officers. While at the protest, PO Hoza observed an individual (later identified as [REDACTED]) standing on top of the hood of RMP #5351. He stated that [REDACTED] was jumping up and down on the RMP. He further stated that he was approximately a block away from the RMP looking at it from the rear when he observed [REDACTED] standing on his RMP. After observing [REDACTED] on his vehicle, PO Hoza stated that he started to run in the direction of the RMP, when another officer (later identified as PO Dinsmore) sprinted past him and got [REDACTED] off the hood of the RMP. PO Hoza stated that he didn't observe [REDACTED] get struck with a baton. PO Hoza stated that he had no interaction with [REDACTED] at the incident location. He further stated that as a result of [REDACTED] actions, he was arrested. It should be noted that [REDACTED] was arrested by PO Dinsmore and charge with [REDACTED]. No other information of investigative value was obtained. A review of PO Hoza's activity log entries related to his incident disclosed that they were proper and within Department guidelines

On 08/13/20, Lt. Zizza and Sgt. Spennato interviewed PO Peter Dinsmore as a subject officer under the provisions of PG 206-13 at 315 Hudson Street. Upon interview, PO Dinsmore stated that on 05/30/20, he was assigned to the Legal Bureau as an escort for one of the attorneys during the protest detail. PO Dinsmore stated that he was present at the location of West 41st and Broadway during his tour. In addition, he stated that it was a "riot" at West 41st and Broadway, with thousands of people engaged in violent and tumultuous behavior and vast amounts of property damage, including things being thrown at the Police. PO Dinsmore stated that he did observe an individual (later identified as [REDACTED]) jumping up and down on the hood of RMP #5351. PO Dinsmore further stated that as a result of [REDACTED] actions, he was arrested and charged with [REDACTED]. At no time did [REDACTED] request or need medical attention. [REDACTED] didn't state that he was injured and had no visible injuries. PO Dinsmore stated that he used a forcible takedown on [REDACTED] in order to get him off the RMP. It should be noted that PO Dinsmore properly documented the force he used against [REDACTED] on TACT Report #2020-014 [REDACTED]. While attempting to place [REDACTED] under arrest, PO Dinsmore recalled observed batons being swung, but doesn't know if any of the batons made contact with [REDACTED]. PO Dinsmore didn't use his baton during this incident. PO

Dinsmore also stated that [REDACTED] resisted arrest by refusing to be handcuffed and attempting to stand up in order to flee the location. At the conclusion of the interview, PO Dinsmore was given an opportunity to view the Instagram video, which captured this incident. After reviewing the video, he was unable to identify the officer that was swinging his baton. No other information of investigative value was obtained. A review of PO Dinsmore's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Dinsmore failed to document the details of his arrest involving [REDACTED]. He also failed to document the force he used on [REDACTED] which is documented under TRI Report #2020-014-[REDACTED].

Supervisory Deficiencies:

There were no supervisory issued noted in the case.

Conclusion:

After a complete and thorough investigation, it was determined that based on a review of an Instagram video, which captured this incident, [REDACTED] was committing a crime by jumping on the hood of marked RMP #5351, causing it to be damaged as documented under Arrest Report [REDACTED]/Complaint Report #2020-014-[REDACTED]. The video clearly shows PO Dinsmore performing a forcible takedown on [REDACTED] by grabbing him by the ankle and taking him to the ground from the hood of the RMP in an attempt to apprehend him. An unidentified officer is then observed on video attempting to assist PO Dinsmore in the apprehension, and is seen attempting to strike [REDACTED] in the leg area with a baton as [REDACTED] attempts to flee. Based on the video, it is inconclusive if the baton made contact with [REDACTED] leg, and the sound of the baton striking the ground, rather than [REDACTED] leg, is audible. No further force is observed being utilized against [REDACTED]. As such, the allegation of Force - Physical Force against PO Dinsmore will be closed as Exonerated. This investigation also disclosed that there was insufficient evidence to prove or disprove if the unidentified officer utilized unnecessary force to apprehend [REDACTED] or if [REDACTED] was struck with a baton. As such, the allegation of Force - Struck with - Baton Asp against Unidentified Officer will be closed as Unsubstantiated. A review of PO Dinsmore's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Dinsmore failed to document the details of his arrest involving [REDACTED]. He also failed to document the force he used on [REDACTED] which is documented under TRI Report #2020-014-[REDACTED]. The overall disposition for this case will be Unsubstantiated / Minor Procedural Violation. A programmatic review isn't required for this case.

Subjects Involved

Name	Status	Sex	Race	Dob
	UNKNOWN UNI MEM OF SERVICE	MALE		

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Use of Force - Level 2	Arrest Effectuated	Force Investigation Notification	06/30/2020	04 - Info. and Intelligence	09/30/2020
	Comments This investigation disclosed that on June 30, 2020, based on the Use of Force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 2 due to the fact that [REDACTED] stated that he was struck with a baton during his arrest for [REDACTED] under Arrest Report # [REDACTED]. TRI Report # 2020-014-[REDACTED] was prepared by PO Dinsmore in regards to this incident. As such, the allegation of Use of Force - Level 2 will be closed as Information and Intelligence.					
2	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Force - Struck with - Baton Asp	Arrest Effectuated	O-Other	06/30/2020	12 - Unsubstantiated	09/30/2020
	Comments This investigation disclosed that based on a review of an Instagram video which captured this incident, [REDACTED] was committing a crime by jumping on the hood of marked RMP # 5351 causing it to be damaged as documented under Arrest Report # [REDACTED] Complaint Report # 2020-014-[REDACTED]. The video clearly shows PO Dinsmore performing a forcible takedown on [REDACTED] by grabbing him by the ankle and taking him to the ground from the hood of the RMP in an attempt to apprehend him. An unknown uniformed member of the service is then observed on video attempting to assist PO Dinsmore in the apprehension, and is seen attempting to strike [REDACTED] in the leg area with a baton as [REDACTED] attempts to flee. Based on the video, it is inconclusive if the baton makes contact with [REDACTED] leg, and the sound of the baton striking the ground, rather than [REDACTED] is audible. This investigation disclosed that there was insufficient evidence to prove or disprove if the Unknown Uniformed Member of the Service utilized unnecessary force to apprehend [REDACTED] or if [REDACTED] was struck with a baton. As such, the allegation of Force - Struck with - Baton Asp will be closed as Unsubstantiated.					
3	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	FADO Force - Struck with - Baton Asp	Arrest Effectuated	O-Other	09/23/2020	04 - Info. and Intelligence	09/30/2020
	Comments					

	On 09/23/20, Spin-Off Log #2020-22070 was created and referred to CCRB to address FADO allegations in regards to this incident. As of 09/30/20, the CCRB has not created a case in regards to this incident. As such, the allegation of FADO Force - Struck with Baton Asp will be closed as Information and Intelligence.					
4	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effectuated	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 09/23/2020	Finding 04 - Info. and Intelligence	Finding Date 09/30/2020
	Comments On July 22, 2020, arrested person, [REDACTED] was interviewed in regards to this incident. During his interview, [REDACTED] stated that he was grabbed by the ankle and removed from the hood of the RMP, then struck with a baton about the knee and thigh. [REDACTED] stated that he sustained pain to his knee, thigh and leg for which he did not request nor receive medical attention. [REDACTED] stated that he chose to never go to the hospital due to the coronavirus pandemic. As such, the allegation of Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved will be closed as Information and Intelligence.					
5	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 10/01/2020	Finding 12 - Unsubstantiated	Finding Date 10/01/2020
	Comments This investigation disclosed that based on a review of an Instagram video which captured this incident, [REDACTED] was committing a crime by jumping on the hood of marked RMP # 5351 causing it to be damaged as documented under Arrest Report # [REDACTED], Complaint Report # 2020-014-[REDACTED]. The video clearly shows PO Dinsmore performing a forcible takedown on [REDACTED] by grabbing him by the ankle and taking him to the ground from the hood of the RMP in an attempt to apprehend him. An unknown uniformed member of the service is then observed on video attempting to assist PO Dinsmore in the apprehension, and is seen attempting to strike [REDACTED] in the leg area with a baton as [REDACTED] attempts to flee. Based on the video, it is inconclusive if the baton makes contact with [REDACTED] leg, and the sound of the baton striking the ground, rather than [REDACTED] leg, is audible. This investigation disclosed that there was insufficient evidence to prove or disprove if the Unknown Uniformed Member of the Service in fact struck [REDACTED] with his baton and then failed to prepare TRI report. As such, the allegation of Fail to Prepare Report - TRI Report will be closed as Unsubstantiated.					
Name 957549 PETER DINSMORE POM (040-040 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation Use of Force - Level 2	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 07/01/2020	Finding 04 - Info. and Intelligence	Finding Date 09/30/2020
	Comments This investigation disclosed that on June 30, 2020, based on the Use of Force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 2 due to the fact that [REDACTED] stated that he was struck with a baton during his arrest for [REDACTED] under Arrest Report # [REDACTED]. TRI Report # 2020-014-[REDACTED] was prepared by PO Dinsmore in regards to this incident. As such, the allegation of Use of Force - Level 2 will be closed as Information and Intelligence.					
2	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 07/01/2020	Finding 01 - Exonerated	Finding Date 09/30/2020
	Comments This investigation disclosed that based on a review of an Instagram video which captured this incident, [REDACTED] was committing a crime by jumping on the hood of marked RMP # 5351 causing it to be damaged as documented under Arrest Report # [REDACTED], Complaint Report # 2020-014-[REDACTED]. The video clearly shows PO Dinsmore performing a forcible takedown on [REDACTED] by grabbing him by the ankle and taking him to the ground from the hood of the RMP in an attempt to apprehend him. No further force is observed being utilized by PO Dinsmore, and [REDACTED] was not punched or kicked at any time. TRI Incident Report # 2020-014-[REDACTED] was prepared by PO Dinsmore documenting the use of a forcible takedown to overcome resistance and aggression. As such, the allegation of Force- Physical Force will be closed as Exonerated.					
3	Full Allegation	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date	Finding	Finding Date 09/30/2020

	FADO Force - Physical Force			09/17/2020	04 - Info. and Intelligence	
	Comments On 09/23/20, Spin-Off Log #2020-22070 was created and referred to CCRB to address FADO allegations in regards to this incident. As of 09/30/20, the CCRB has not created a case in regards to this incident. As such, the allegation of FADO Force - Physical Force will be closed as Information and Intelligence.					
4	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effectuated	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 09/20/2020	Finding 04 - Info. and Intelligence	Finding Date 09/30/2020
	Comments On July 22, 2020, arrested person, [REDACTED] was interviewed in regards to this incident. During his interview, [REDACTED] stated that he was grabbed by the ankle and removed from the hood of the RMP, then struck with a baton about the knee and thigh. [REDACTED] stated that he sustained pain to his knee, thigh and leg for which he did not request nor receive medical attention. [REDACTED] stated that he chose to never go to the hospital due to the coronavirus pandemic. As such, the allegation of Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved will be closed as Information and Intelligence.					
5	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 10/01/2020	Finding 24 - Minor Procedural Violation	Finding Date 10/30/2020
	Comments A review of PO Dinsmore's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Dinsmore failed to document the force he used against [REDACTED] in his activity log. As such the allegation of Memobook Incomplete/Improper will be closed as Minor Procedural Violation. Letter of Referral will be forwarded to PO Dinsmore's Commanding Officer.					

ATTACHMENT

1	 'Letter to [REDACTED]'
2	 'MPV Letter of referral for PO Dinsmore'
3	 'Notice of disposition for PO Dinsmore'

Reporting Officer:	Rank SGT	Name CHUYKO YURIY		Tax Reg. No. 940006		Command G54-GROUP 54 - FORCE
Reviewing Supervisor:	Manner of Closing 9M - UNSUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Date Reviewed 10/06/2020	Date of Next Review	Name CORRADO DERRICK		Supv. Tax No. 897238
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 10/06/2020 14:56	Status Approved
	Comments THE UNDERSIGNED REVIEWED ALL STEPS TAKEN IN REGARDS TO THIS INVESTIGATION AND DETERMINED THAT ALL REASONABLE STEPS THAT WOULD AIDE IN THIS INVESTIGATION HAVE BEEN PERFORMED. THIS CASE WAS INVESTIGATED IN A TIMELY FASHION. IT SHOULD BE NOTED THAT THIS CASE WAS					

ORIGINALLY INVESTIGATED BY SGT. SPENNATO, BUT REASSIGNED TO SGT. CHUYKO ON 09/14/20, DUE TO THE FACT THAT SGT. SPENNATO WAS ONLY TEMPORARILY ASSIGNED TO GRP #54 AND RETURNED TO GRP #56

NOTE: WHEN CONDUCTING PG INTERVIEWS, THE S/O OR W/O ONLY NEEDS TO READ ACTIVITY LOG ENTRIES RELATED TO THE INCIDENT. THEY DON'T HAVE TO READ THE ENTIRE DAY.

ALL CASE INACTIVITY PERIODS MUST BE DOCUMENTED. THE FOLLOWING CASE INACTIVITY PERIODS WERE IDENTIFIED: 07/02/20 TO 07/12/20 (I/O NOTED VAC FROM 07/03/20 TO 07/11/20)

Endorser:	Rank INS	Name CORRADO DERRICK	Tax Reg. No. 897238	Command Z03-ZONE 3	DateTime Reviewed 10/06/2020 15:35	Status Approved
	Comments APPROVE					